LETTER OF INTENT

Tuesday, 23rd Jan, 2024.

To,

M/s. NIHVA Technologies Pvt. Ltd.

187, G-Block, 1st Floor, Above Renault Showroom, Thermax Chowk,
MIDC, Chinchwad-411019.

Subject : **Letter of Intent (LOI) for Smart-roof Fully automated louvered roofing system works (Labour + Material) on Job work basis for our Corporate Office, Pune Station Pune.**

Ref. : Further your Quotation & our subsequent discussions.

Attn. : **Mr. Pranav (8551008333).**

Dear Sir,

With reference to your above quotation, we are pleased to issue the LOI for **Smart-roof Fully Automated Glass Roofing System** on Job work basis for our **Corporate Office Project** at Pune.

LOI is based on the Terms & Conditions attached as Annexure A and Technical Specifications attached for the respective project.

Other terms and conditions shall be detailed in the work order.

Sign and submit the duplicate copy of LOI for acceptance of contract from your end for the above said work after receipt of LOI.

Regards,

For Bramhacorp Ltd.

Director **Sign & Seal of Contractor / Vendor**

[Received on / / 2024 and accepted]

Encl. –
1) Annexure A - Terms & Conditions and Technical specification.
2) Annexure B – Schedules of Rates.
3) Annexure C – Special Condition of Contract (SCC).
4) Annexure D - Indemnity Bond.

1 SUMMARY

A	Owner	**BRAMHACORP LTD.**
B	Owner's Representative / Engineer in Charge	Person appointed from time to time by the Owner to act as the Engineer in charge for the purposes of the Contract.
C	Contractor	**M/s. NIHVA Technologies Pvt. Ltd.**
D	Project	**Corporate Office**
E	Contract Duration	**35 Days (Thirty-Five Days)** from the date of Issue of Work order or letter of intent whichever is earlier & Rate/Price Validity of Contract **above Durations + 09 Months.**
F	Minimum value of Interim Certificate & Frequency of Interim Running account bills	As per Payment terms / stages of Bill submission.
G	Period of Payment of RA Bills	21 days after certification of Engineer in charge and Estimation Department at Head Office.
H	Period of Final Measurement / Taking Over Certificate	Up to 45 days after completion of the Work
I	Security Deposit & Retention Money	5% retention amount to be deducted from each Bill.
J	Refund of Security Deposit / Retention Money	**After 12 months** from date of completion and successful handing over.

2 SCHEDULE OF RATES

The unit price mentioned in the **work order** for the works is deemed to include all Labour, Transportation, inter site shifting, Mobilization & Demobilization charges for all resources, Services of labours and machinery, including all tools, tackles, cleaning of work space throughout time of work, leads, lifts and all incidental items not specifically described in the scope of works or anywhere in the contract for completion of the work as per the drawings / as per the instruction of the Owner.

The rates are fixed throughout execution period and up to final completion of the work irrespective of quantum of work & there will not be any price escalation for any reason.

3 SCOPE OF WORK

The Scope of Work shall cover the entire **Smart-roof Fully Automated Glass Roofing System (Labour + Material Only) for our Corporate office Project,** as per technical specifications issued by the Owner / Consultants / RCC Designer / Engineer in charge. Under this order the contractor shall be liable to comply and perform / carry out the work in strict conformity to these specifications and technical terms. Further drawings and designs will be duly certified by the Owner / Consultants / RCC Designer / Engineer in charge and as per the qualitative work directions of the Engineer in charge. Any deviation there from or any delay in the schedule of work shall empower the Owner to terminate the contract immediately. In the absence of any specific specifications issued by the Owner / Engineer in charge, the specifications issued by the Central or State Public Works Department or Relevant IS Code no. issued by Bureau of Indian Standard will be applicable. In case specific specifications are not available in records of PWD or CPWD or IS Codes then the decision of the Owner / Engineer in charge regarding the work will be final and binding.

All materials should be in contractor's scope.

4 VARIATION AND CLAIMS

- The contractor is fully aware of work site conditions, design, drawings, Specifications and the scope of work. The Rates in the BOQ shall be firm and extra claim for rates shall neither be entertained nor paid.
- Owner reserves the right to increase or decrease the quantity of work to any extent, increase / cancel whole or any part thereof. The quoted rates will remain same for any extent of quantity variation.
- The Owner may ask the Contractor to execute or otherwise any items as required in connection with the proper execution of works. The contractor will have to promptly execute the same. In case the B.O.Q. does not include the rates for such items, it shall be considered as Extra/Substituted item. The rate for such item shall be derived by considering the total materials required, total labour required and pricing at market rates with suitable provision for tools, plants, and overheads and profits @ 15% of the cost of material and labour plus the cost of taxes as applicable rates.
- No Extra item of work shall be executed without approval of rate of Item from Owner / Engineer in charge.
- There will be no idle time charge and or extra rate claims towards work interruptions due to safety, monsoon, work permits etc. If due to heavy rains work of contractor stops, he will be entitled to claim it as non-working day after making proper documentation and approval from Engineer in charge.
- The contractor shall do optimum use of all resources as per requirements and specifications. The cost of additional wastages in resources due to any reason like negligence while working, handling, stacking, storage or while working, mistakes in understanding the drawing and workmanship etc. will be borne by the contractor. No communication shall be entertained in this regard with Owner.
- If any ambiguity arises as to the meaning and intent of any portion of the specifications and drawings or as to execution or quality of any work or material or as to the measurement of the works, the decision of the Owner / Engineer in Charge thereon shall be final and binding.

5 CONTRACTORS OBLIGATION

5.1 Rules and Regulations

Contractor has to comply with all the statutory rules and regulation as applicable and which are laid by the Local / State / Central authorities regarding Material, Execution of the work, Labour, Labour Welfares, Handling, Quality, Environment, Safety for the Work and Workmen, Taxations, Insurances of requisite values and including all the license and certificates required to execute the work. In no case Owner will be responsible for all compliances which are mentioned above and also for them which are not mentioned above but are mandatory for Contractor to comply with.

The Contractors shall alone remain liable to and shall indemnify the Owner in respect of all losses, causes of actions, claims, damages, hospitalization charges and compensation or costs, charges and expenses arising out of any accident or injury sustained by any workmen and/or their family members and/or other persons employed under him / them whether in the employment of the Contractors or not while in or upon the said works or the site of the same arising out of any act, default or negligence or error in judgment of their servants and agents. The Owner shall in no way be responsible or liable for the same.

If any matter, mishap shall emerge, then all the costs which shall incurred due to any of above reason, matter are deemed to be included in contractor's rates which are finalized.

If there is any deviation by contractor in confirming to time, quality, safety, security, statutory compliance and for satisfactory completion of work, then the Owner reserves the right to levy delay penalty / damages to the contractor. Same shall be recoverable from the Contractor or may be deducted by the Owner / Engineer in charge from any money due or may become due to the Contractor.

Daily attendance record must be implemented for all class of labors including contractor staff and records of same shall be submitted at such intervals as required by the EIC.

It shall be mandatory & binding upon the Contractor that before undertaking any item of work or constituent activity, Safety Work Permit, the relevant samples / work execution methodology has to be priorly discussed and an approval shall be obtained from EIC of the Client.

5.2 Contractor's Personnel and Superintendence

The Contractor shall provide all necessary superintendence during the execution of the Works and as long thereafter as the Engineer in Charge may consider necessary for the proper fulfilling of the Contractor's obligations under Contract. Such superintendence shall be given by sufficient persons having adequate knowledge of the operations to be carried out for safe execution of the Works.

The Contractor shall employ only persons who are careful and appropriately qualified skilled and experienced in their respective trades or occupations. The Owner or Engineer in charge may require the Contractor to remove any person employed on the Site or Works including the Contractor's Representative who in the opinion of the Engineer in charge:

- Persists in any misconduct.
- Is incompetent or negligent in the performance of his duties.
- Fails to conform to any provisions of the Contract or.
- Persists in any conduct, which is prejudicial to safety health or the protection of the environment.

If appropriate the Contractor shall then appoint a suitable replacement person.

5.3 Co-ordination of the Works

The Contractor shall be responsible for the co-ordination and proper execution of the Works, including co-ordination with another Contractor. The Contractor shall, afford all reasonable opportunities for carrying out their Works to: Any other Contractor employed by the Owner and their Workmen. The Workmen of the Owner; and the Workmen of any legally constituted public authorities, who may be employed in the execution on or near the Site of any Works not included in the Contract, which the Owner may require.

The Contractor shall obtain, co-ordinate and submit to the Owner / Engineer in charge for his information all details (including details of Works to be carried out off the site) from Sub-Contractor. The Contractor shall be responsible for the location of their Works or materials, in order to ensure that there is no conflict with the Works of other Sub-Contractor, the Contractor or other Contractor.

The Contractor shall not sub-Contract the whole of the Works. Further, prior consent of the Engineer in charge shall be obtained to proposed Sub-Contract; not less than 28 days before the intended date of each Sub-Contractor commencing Works on the Site, the Contractor shall notify the Engineer in charge.

The Contractor shall be responsible for observance by all sub-Contractor of all the provisions of the Contract. The Contractor shall be responsible for the acts of defaults of any sub-Contractor, his agents or employees, as fully as if they were the acts of defaults of the Contractor, his agents or employees.

5.4 Disorderly Conduct

The Contractor shall at all times take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by or amongst his staff and labour and to preserve peace and protection of persons and property at work site and in the neighborhood of the Works against such conduct.

The Contractor shall be penalized in case of any worker found misbehaving at site. In case Contractor or his personnel fails to comply with the instructions by the Engineer or Owner's representative at site, necessary action against the worker and the contractor will be taken as deemed fit by the Engineer in Charge. Decisions of Owner / Engineer in Charge will be final and binding in all above matters.

5.5 Operations at Site

The Contractor shall confine his operations to the site and to any additional areas, agreed by the Engineer in charge as working areas. The Contractor shall take all necessary precautions to keep his personnel and equipment within the Site and such additional areas, and to keep and prohibit them from encroaching on adjacent work areas. If any work is to be done at a place other than the site of works, the Contractor shall obtain the written permission of the Engineer in charge for doing so.

5.6 Safety and QMS Standards

Quality Management System should be maintained as per the ISO Standards and requirements and no extra cost will be paid to contractor on this account. The Contractor shall follow and implement Quality Management System as per ISO-9001- 2008.

The Contractor shall execute the work following the Government Safety Standards / National Safety Council (NSC) / Bureau of Indian Standard and safety policy of Owner which shall include providing safety equipment's, safety belts, safety shoes and non-conductive helmets to all workers, insulated gloves, insulated ladders, and Glasses, non-conductive mats, appropriate tags, fire extinguisher for the various types of fires, protective clothing, barriers / erecting of safety barricades, displaying safety posters and instructions / training about awareness for safety in local language.

The Contractor shall implement full process control by issue of work instructions and check lists and maintaining latest drawings, specifications and codes.

No inflammable materials including P.O.L [Petrol / Oil / Lubricant] shall be allowed to be stored in huge quantity at site. However, reasonable quantity may be permitted for storage, subject to the compliance of all rules / instructions issued by the relevant authorities and as per the direction of Owner / Engineer -in- Charge in this regard.

The Contractor shall save harmless and indemnify the Owner in respect of all claims, proceedings, damages, costs, charges and expenses whatsoever arising out of, or in relation to, any such matters in so far as the Contractor is responsible thereof.

6 CONTRACT DURATION

Contract Duration shall be **35 Days (Thirty-Five Days)** from the date of Issue of Work Order to the contractor. However, irrespective of completion time contractor has to follow the milestones / targets allotted by our Management and Site Execution team.

Contractor has to commence the work within seven days from the date of work order / LOI whichever is later. Mobilization period is included in the duration of contract.

Time is essence of the Contract. The Contractor shall submit to the owner/ Engineer in charge for approval, Resource based activity linked Schedule (preferably in MS Project) covering all activities for the completion of works as envisaged in the scope of work along with cash flow within 10 days from the signing of work order.

The program shall indicate Milestones as per the owner's requirement. All activities of the schedule shall be detailed to the extent possible.

Contractor has to arrange his activities in planned way without affecting other contractors working in vicinity. Also, he shall allow other contractors to work whenever Engineer in charge instructs him. The Contractor shall co-operate and co-ordinate with any other agency deployed by the Owners. Contractor's claim for delay in this regard will not be entertained.

If the Owners want to occupy any particular area of work, the Contractor shall complete the work in conjunction with the Owners requirements and hand over the same to the Owners without affecting any of the clauses of Contract.

If the work is not completed in stipulated time limit, the penalty per day and liquidated delay damages will be applicable. If the quantity of work exceeds the BOQ, then time extension for the excess quantity of work may be permitted by the Owner.

7 QUALITY CONTROL AND QUALITY ASSURANCE

The Contractor shall institute a quality assurance system to demonstrate compliance with the requirements of the Contract. Such system shall be in accordance with the details stated in the Contract. Compliance with the quality assurance system shall not relieve the Contractor of his duties, obligations or responsibilities.

Details of all procedures and compliance documents shall be submitted to the Owner's Representative for his information before each execution stage is commenced. When any document is issued to the Owner's Representative, it shall be accompanied by the signed quality statements for such document, in accordance with the details stated in the Contract. The Owner or Owner's Representative shall be entitled to audit any aspect of the system and require corrective action to be taken.

Contractor has to submit the calibration certificates and reports for the accuracy of each and every instrument and equipment's before using. Also, the contractor shall arrange timely calibration of all his measuring and testing equipment at his own cost from reputed laboratory and supply of calibration certificates to the Engineer In charge. The calibration must be carried out in accordance with the manufacturer's requirements to ensure that they perform to the same level of accuracy as stated in the manufacturer's specifications.

8 MATERIAL AND WORKMANSHIP

8.1 Manner of Execution

All Materials to be supplied shall be manufactured and all Works to be done shall be executed, in the manner set out in the Contract. Where the manner of manufacture and execution is not set out in the Contract, the Works shall be executed in a proper, workmanlike and careful manner with properly equipped facilities and non-hazardous materials and in accordance with recognized good practice.

Contractor shall be liable to comply and perform / carry out the work in strict conformity to specifications and technical terms and as per the drawings and designs duly certified by the Consultants / RCC Designer/ Engineer in charge / Architect with the qualitative work directions of the Engineer. Any deviation there from or any delay in the schedule of work shall empower the Owner to terminate the contract immediately.

In the absence of any specific specifications issued by the Owner / Engineer in charge, the specifications issued by the Central or State Public Works Department or Relevant IS Code no. issued by Bureau of Indian Standard will be applicable. Where a specification is not available in records of PWD, CPWD or IS Codes then the decision of the Owner / Owner's representative / Engineer in Charge regarding the work will be final and binding.

8.2 Delivery to Site

The Contractor shall be responsible for procurement, transportation, receiving, unloading and safekeeping of all materials, Contractor's equipment and other things required for the completion of the Works.

8.3 Inspection

The Owner and his representatives shall be entitled, during manufacture, fabrication and preparation at any places where Works are being carried out to inspect examine and test the materials and workmanship and to check the progress of manufacture of all materials to be supplied under the Contract. The Contractor shall give them full opportunity to inspect examine measure and test any Works on Site or wherever carried out.

The Contractor shall give due notice to the Owner whenever such Works are ready before packaging covering up or putting out of view. The Owner shall then either carry out the inspection, examination, measurement or testing without unreasonable delay, or notify Contractor that it is considered unnecessary. If the Contractor fails to give such notice, he shall, when required by the Owner uncover such Works and thereafter reinstate and make good at Contractor's cost.

8.4 Testing

For Tests, before completion, the Contractor shall provide all documents and other information necessary for testing.

The Contractor shall agree well in advance with the Engineer in charge, the time and place for the testing of any materials and other parts of the Works. The Engineer and / or Owner's Representative shall give the Contractor not less than 24 hours' notice of his intention to attend the Tests. The Contractor shall provide sufficient suitably qualified and experienced staff to carry out the Tests specified in the Contract.

The Contractor shall promptly forward to the Owner duly certified reports of the Tests. When the specified Tests have been passed, the Owner shall endorse the Contractor's test certificate or issue a certificate to him, to that effect.

8.5 Removal of Improper Work and Materials

The Owner / Engineer in charge shall, during the progress of the works, have power to order in writing from time to time the removal from the works, within such reasonable time as may be specified in the order, of any materials which in the opinion of the Owner / Engineer in charge are not in accordance with the specifications or the instructions of the Owner / Engineer in charge, and the substitution of proper materials and removal and proper re-execution of any work, which has been executed with improper materials or workmanship. And the Contractor shall forthwith carry out such orders at his own cost. In case of default on the part of the Contractor to carry out such orders, the Owner / Engineer in charge may employ and pay other persons to carry out the same and all expenses consequent thereon or incidental thereto shall be borne by the Contractor and 20% extra shall be recoverable from the Contractor or may be deducted by the Owner / Engineer in charge from any money due or may become due to the Contractor.

If the work with minor defects can be allowed to remain in the work, the Owner / Engineer in charge may allow such work to remain and, in that case, may propose payment for this part of the work at a suitable reduced rate.

8.6 Inspection and Handing Over

- The Contractor shall carry out inspections in the presence of Engineer in charge /representative of the owner, to establish satisfactory completion.
- The works shall be handed over to the Owner's site representative after satisfactory inspection, compliance of all issues raised during inspection and certificate by the Engineer that the contractor has cleared the site of all waste materials, debris and litter caused by him during the execution.
- Submission of the above documents shall form a precondition for the final acceptance of the installation, final payment / Release of Retention/Security Deposit.
- Upon handing over, the Owner's site representative shall issue to the contractor the necessary certificate of acceptance within 10 days.

8.7 Partial Handing Over

If the Owners want to occupy area in part, the Contractor shall complete the work in the areas in conjunction with the Owners requirements and hand over the same to the Owners without affecting any of the clauses of Contract.

8.8 Material Reconciliation

Contractor shall reconcile all the materials supplied at the time of every R. A. Bill or as per instructions of Owner / Engineer in Charge. Bill received without Material reconciliation statements will not be processed for payment. If at any time Owner / Engineer wants to physically verify the stock availability at site in contractor's store, then contractor shall allow the access to Owner / Engineer / their representative with all the required help. An issue and stock register are to be maintained by the contractor at site for each and every material handed over by the owner to the contractor, the registers shall be kept accessible all the time to Engineer / his representative/s. It is the responsibility of the contractor to take due care of all the materials after handing over by the Owner.

9 LABOUR

- **The Contractor shall comply with the Labour Laws including Provident Fund act / ESI.**
- The contractor shall maintain proper muster and salary register of workers employed on the site as prescribed by labour office under the Minimum Wages Act. The Contractor shall submit the copy of Wage Sheet and P.F. challans as and when required by the owner.
- No child labour below age of 18 years is allowed to work on site.
- Contractor shall, ensure reasonable facilities commensurate with applicable Laws/ Legislation at appropriate location depending upon site conditions.
- The contractor shall make his own arrangement for workers camp, staff accommodation and their welfares. The contractor shall be fully responsible for any accident in Labour camp.
- It shall be contractor's responsibility to keep the work place clean and clear from any nuisance and no worker shall wander at site except working place, if any worker is found doing the same then the contractor will be penalized.
- Consumption of alcohol is strictly prohibited, if any worker is caught / found in alcoholic state / drunken state he / she shall not be allowed to work and stay further at workplace and the vendor / contractor shall be penalized for the same at the sole discretion of Owner / Engineer in Charge / Architect. No children shall be allowed at work place or near working area.
- Contractor / his subcontractors / his employees or workers shall maintain site manners and work culture while working at site. If any worker found misbehaving at site, serious action against the worker and the contractor shall be taken as per the decision of Engineer in Charge. Decisions of Owner / Engineer in Charge shall be final and binding in all above matters.
- **RA Bills or payment due against bills shall not be processed in case of default /delay in compliances with respect to Labour laws / PF / ESIC.**

10 SAFETY PROCEDURES

The Contractor shall follow all safety rules stipulated by the Owner. All equipment's mobilized by the contractor for the project shall meet with safety requirements of the statutory regulations. If the equipment is not meeting the requirements, the same shall be replaced at no extra cost and without affecting the scheduled progress of work. Notwithstanding the above, following minimum safety precautions / procedures shall be followed during the execution of the work.

a) The contractor shall provide (If required) safety training and the work details to the labour in their local language.

b) Use of PPE's - Safety shoes, Helmets, safety goggles, hand gloves Dust mask, Hearing Protection and fall protection shall be arranged by the Contractor and issued for use to all workmen at site.

c) No inflammable materials including P.O.L [Petrol / Oil / Lubricant] shall be allowed to be stored in huge quantity at site. However, reasonable quantity may be permitted for storage, subject to the compliance

of all rules / instructions issued by the relevant authorities and as per the direction of Owner / Engineer -in- Charge in this regard.

d) Any other safety requirements specified by the Owner during execution of the work.

e) Fall Protection- Contractor to ensure and fulfill below minimum fall protection criteria: -

- Fall Protection Fixing of Safety net must be in three Layer at up to 10th floor.
- Safety Net Overhead Protection
- Catch net
- Below works area.
- Edge protection MS Barrication for all periphery edges all floor with Mid rail and guard rail height 1250 mm with white and brown color
- Life Line Horizontal Life line with 20 mm polyamide rope
- Vertical life line with fall arrester lock
- Duct closing duct closing with MS material,
- Lift shaft closing with MS material / Safety net
- Fire duct close with MS material with proper manner
- Electrical duct close with MS material
- Opening close with MS material / Monofilament net
- Safety near excavated area Excavation barrication with MS barrication height 1250 mm with mid rail & ground rail with color white & brown Barrication must be provided at below 500mm depth or trench at more than 1.5 mtr use safety net for soil protection

f) It will be The Contractor's sole responsibility to ensure that there is no accident and there is no casualty in any manner by providing sufficient safety measures sufficient and or as may be required by law. In any case if any liability arises on this account, it will be The Contractor's responsibility and on The Contractor's account. The Contractor will take all required Insurance Policies. The insurance premium towards Contractors Insurances/policies and third party (TP)liabilities and all the necessary insurance premium related to Contractor's Workmen Compensation, Plants and Equipment's, Pilferage etc. shall be arranged and borne by the Contactor and proof of the same shall be submitted to the EIC.

The Contractor shall indemnify and hold harmless the Owner, owner's representative and their agents against and from all claims, proceedings, damages, costs, charges and expenses whatsoever arising out of, or in relation to, any such matters in so far as the Contractor is responsible thereof.

11 FACILITIES TO BE PROVIDED BY THE OWNER

- All necessary passes for entry into site will be provided.
- Man, Material hoist to be provided by client to shift the material, space for material storage to be provided by client.
- Supply of electricity and water shall be provided free of charge at any point near the Work Space. The necessary charges for the cabling/piping beyond the specified point shall be borne by the Contractor. If it is found that the contractor is misusing or wasting the electricity and water then the charges for electricity & water will be levied on the contractor with penalty. If in any circumstance the Electricity supply provided to the Contractor becomes deficient, then it shall be responsibility of the Contractor to arrange the deficit quantum, the cost will be decided and agreed mutually. No claim of extension in duration of contract will be entertained on the account of non-availability of the same.

- The Contractor is responsible for maintaining the site free from accumulation of Garbage, Wastage etc. throughout period of execution of this contract up to satisfaction of Engineer in charge. If he fails to do so, Owner will execute same work and contractor will be debited with additional 20% charges.

12 MODE OF MEASUREMENT

The mode of measurement of work done shall be as per unit of measurement of respective items in Work Order.

13 TERMS OF PAYMENTS

13.1 Stages of Payment& Bill Submission

a) Payment Terms -

1. 70% Advance against Bank Guarantee.
2. 10% After Material Delivery at Site
3. 10% After Installation & Handover.
4. 10% Handover.

b) Recovery of Advance shall be: Not Applicable.

13.2 R.A. Bill / Final Bill

The contractor shall submit every bill only as per format approved by owner/Engineer in charge. Bill must be attached with proper measurement of quantities from approved qualified person. Joint measurements shall be attached with the bills. Contractor shall mention reference number clearly on all pages of the submission. The Bill shall be stage wise as mentioned in Stages of Bill Submission. Along with every bill contractor has to submit statement showing the bifurcation of cost incurred against work and the cost of taxes as per the applicable regulation and rules.

13.3 Retention

Retention (non-interest bearing) of 5% will be deducted from each R.A. Bill/Extra Item Bill/Final Bill. Retention (non-Interest Bearing) shall be released after completion of defect liability period.

13.4 Taxes / Duties

Deduction of Income Tax (T.D.S.) and Works Contract Tax will be made from each R.A. bill, Final bill & extra items bill at the prevailing rates declared by the Government. The Owners will issue a certificate to this effect in requisite form at the end of each financial year.

GST will be paid to the contractor as per applicable. All other taxes, duties and levies other than GST are included in the rates finalized.

Any statutory variation in existing rates of tax charges during contract period will be paid as per applicable. However, for claiming any such statutory variation, the contractor is required to furnish the documentary evidence / proof in support of the same for scrutiny and approval. Any downward variation in above rates of taxes will have to be passed on to the Owner.

13.5 Payment

The payments shall be released within 21 days from the date of certification of the invoice by Engineer in charge.

13.6 GST

The Company reserves the right to recover amount of GST / Tax in case it's found that supplier/contractor has falsely charged to the Company amount of GST / Tax in the invoice and same has not been paid to statutory authority / the same is not reported to respective tax authorities due to which the Company is not able to get its due credit as per the respective tax rules and statue. The Company can recover GST / Tax (a) along with penalty if any, by way of penalty / debit to account / raising invoice / deduction in payment or by any other mode and at the sole discretion of the Company.

14 DEFECT LIABILITY

Defect Liability period of **12 Months (Twelve Months**) shall be applicable for all works executed, by the contractor under this contract. During this period the Contractor will repair and or replace the defective parts/areas, free of cost, such a repair and or rework shall be as per Owner's approved material/methodology equal or better than original.

All labour, tools, materials, transportation, insurance, any other cost incurred to complete the work etc. required in performance of this maintenance contract shall be at the Contractor's expense.

This clause shall always be read in conjunction with the Real Estate (Regulation and Development) Act, 2016 (RERA) and all applicable laws. Any changes or amendments in any laws, rules and/or regulations pertaining to DLP will be deemed to be applicable.

Contractor shall submit following years' Service Guarantee or Warranty on Rs. 500 stamp paper shall be submitted by Contractor upon satisfactory completion of Defect Liability Period, duly Notarized. Any defect in this period shall be rectified by contractor at his own cost.

15 DELAY DAMAGES

Owner reserves the right to levy delay damages to the contractor on per day basis for delay in stage wise work completion and or the entire work completion, subject to maximum of the amount of 5% of entire contract amount. Such Delay Damages shall be recoverable from the Contractor or may be deducted by the Owner / Engineer in charge from any money due or may become due to the Contractor.

16 DOCUMENTS

Contractor has to submit the following Documents (Notarized / Attested Copy) as per applicability of his firm as a formality to work order within 7 days from the date of receipt of work order. No Advance/R. A. Bill shall be released until the applicable documents are submitted.

a) Copy of Registration of Firm / Company.
b) Memorandum of article of association / Partnership deed (if any).
c) Bank Solvency minimum worth of Contract Value / Work Order value / Purchase Order value or more whichever is available.
d) Power of attorney to sign the Work Order / Documents (If any).
e) Copy of Pan Card.
f) Copy of registration and clearance certificates of VAT/ Works Contract Tax / Sales Tax,
g) Copy of registration and clearance certificates of Service Tax.
h) Certificate of registration with the department of Provident Fund and ESI and Copy of Latest / Current month Deposit Challan copies ESI / PF, Contractor has to submit these copies of deposit challan with every RA Bill.
i) Contractors all risk insurance policy worth of contract value including damage to third party / workmen compensation policy / any other insurance which is applicable as per the law of land and local / central / state authorities.

j) All the compliances relating to labour as per applicable, any other license / certificate which is applicable to perform the work though labours as per the law of land and local / central / state authorities Viz.: Labour License, License for Registration of Establishment under Building and other construction workers Act etc.

k) Company Profile of Contractor Containing –

i. Details of Firm / Company including Registered Address, Communication Address, Details of Head office and branch office/s (if any).

ii. Name, address and contact number of Proprietor / Partners / Directors

iii. Turnover of the company

iv. List of Technical, Skilled and Unskilled Manpower available with the Company clearly mentioning the availability for our project.

v. List of works of similar quantum completed during last five years with the copy of work completion certificates.

vi. List of Works in Hand with the certificate value of work and value of work completed.

vii. List of plants and equipment's available with the contractor and to be deployed for the contract.

l) Quality Manual (If any).

m) Environment, Health, Safety Manual (If any).

17 INSURANCE

The Contractor shall without absolving his or Owner's obligations and responsibilities, undertake all required but not limited to workers compensation insurance including "Workmen compensation policy" of required amount at his own expenses. The Contractor shall during the period of execution of the works cover all its employees, agents and others at the site at the instance or initiation of the Contractor against all perils and risks and the owner shall not be responsible for any loss during the execution of the job. Such insurance shall be affected and maintained for so long as so many people are at the project site.

18 RISK AND RESPONSIBILITY

18.1 Indemnities

The Contractor shall indemnify and hold harmless the Owner, the Owner's Personnel, and their respective agents, against and from all claims, damages, losses and expenses (including legal fees and expenses) in respect of:

A. Bodily injury, sickness, disease or death, of any person whatsoever arising out of or in the course of or by reason of the Contractor's design (if any), the execution and completion of the Works and the remedying of any defects.

B. Damage to or loss of any property, real or personal (other than the Works), to the extent that such damage or loss:

i. Arises out of or in the course of or by reason of the Contractor's design (if any), the execution and completion of the Works and the remedying of any defects, and

ii. Is attributable to any negligence, willful act or breach of the Contract by the Contractor, the Contractor's Personnel, their respective agents, or anyone directly or indirectly employed by any of them.

C. Intellectual property rights and violation of any law viz, labour laws etc.

18.2 Contractor's Care of the Works

The Contractor shall take full responsibility for the care of the Works and Goods from the Commencement Date until the Taking-Over Certificate is issued. The Contractor shall take full responsibility for the care of any work, which is outstanding on the date stated in a Taking-Over Certificate, until this outstanding work has been completed.

If any loss or damage happens to the Works, Goods or Contractor's Documents during the period when the Contractor is responsible for their care, the Contractor shall rectify the loss or damage at the Contractor's risk and cost, so that the Works, Goods and Contractor's Documents confirm with the Contract.

The Contractor shall be liable for any loss or damage caused by any actions performed by the Contractor after a Taking-Over Certificate has been issued. The Contractor shall also be liable for any loss or damage, which occurs after a Taking over Certificate, has been issued and which arose from a previous event for which the Contractor was responsible.

19 SUSPENSION

The Owner / Engineer in Charge may at any time instruct the Contractor to suspend progress of part or all of the Works. During such suspension, the Contractor shall protect, store and secure such part or the Works against any deterioration, loss or damage. The Owner / Engineer in charge shall notify in advance to the contractor of the suspension of work, unless such a suspension is:

- Some unavoidable circumstances or local problem occurred at worksite
- Any major technical revision in the work
- Necessary by reason of some default or breach of contract agreement by the Contractor or for which he is responsible
- Necessary by reason of climatic conditions on site or
- Necessary for the proper execution of the work or for safety of the works or any part thereof

20 TERMINATION

If there is any deviation by contractor in confirming to time, quality, safety, security, statutory compliance and for satisfactory completion of work, then the Owner reserves the right to terminate the contract without assigning any reason thereof.

21 ARBITRATION

21.1 Amicable Settlement

In case of any disputes, both Parties shall attempt to settle the dispute amicably through suitable mechanism mutually discussed and agreed upon before the commencement of arbitration.

21.2 Arbitration

Unless settled amicably, disputes shall be settled by arbitration and shall be subject to the provisions of the Arbitration and Conciliation Act 1996 (or any modifications to or any re-enactments thereof as in force at the time). Each Party shall be entitled to nominate an arbitrator and the two arbitrators so nominated shall jointly nominate a third presiding arbitrator. The three Arbitrators shall form the arbitral tribunal the ("Tribunal"). The Tribunal shall give a reasoned award within sixty (60) days from the date of constitution of the Tribunal. The place of arbitration shall be Pune and the language of the arbitration shall be English.

This contract is under jurisdiction of court at Pune.

Prepared By	**AGM Contracts**	**DGM Contracts**	**AVP Operations**	**Approved by Director**

Accepted on behalf of **M/s. Nihva Technologies Pvt. Ltd.**

I / We hereby acknowledge the receipt of this Work Order Ref. no Letter of Intent dated **23.01.2024** and confirm that I / We have read all terms and conditions mentioned in the Work order and its Annexure and the same are acceptable to us.

Name: ……

(Stamp and Signature)

ANNEXURE B - SCHEDULE OF RATES

Bramhacorp Ltd.					
Corporate Office, Pune Station Pune.					
Smart-Roof Fully Automated Glass Roofing system: - (Material + Labour).					
SR. NO	**ITEM DESCRIPTION**	**UNIT**	**QUANTITY**	**RATE**	**AMOUNT**
1.	**Charges For Automatic Retractable Glass Roof (Including Structure).** **1. 4.7Wx7.5L** **2. 4 Panel.** **3. One Side Opening**	**Job.**	**1**	**26,00,000**	**26,00,000**
				Total	**26,00,000/-**

In Words- Rupees Twenty-Six Lakhs only. (18% GST extra).

Notes-

1. **GST shall be Extra** over the above rates and shall be applicable as per the time-to-time changes from Govt Gazettes.
2. The Above Rate includes -All Labour Compliances, Safety PPE's, PF, WC, BOCW, etc. as may be applicable at per statutory compliances
3. Labour Hutment: Shall be provided by Client required, However Nominal Charges to be debited -Rs. 1500/- per Hutment per Month from contractors RA Bills
4. Areas/Quantities are estimated based on preliminary drawings, however Actual quantities as per Good for Construction drawings / actual work executed at site shall be measured for billing/payment purpose.
5. Scaffolding is in BCL Scope.
6. Transportation charges & Haulage of Material is in BCL Scope (At Actual).
7. Unloading is in BCL Scope.
8. Bill Of Material: -
    a. Laminated Glass 11.52mm Thick. Make- Saint Gobin.
    b. MS Structure with Powder Coatings of 90-120 Micron. Make- Jindal.
    c. Interlocking- Nylon Stopper with Mechanism.
    d. EPDM Gaskets & Seal nets – Makes – GR Rubber & Dowseal Respectively.
    e. Motor Mechanism with Control Panel – Nice Make.
    f. 2 Remote Control- Make- Nice.
    g. Single Phase Bi- Directional motor. Make- Nice.
    h. Power- As Per Roof Dimension.

i. Mechanical Limit Switch.

j. AMC: - AMC Cost Extra.

Prepared By	**AGM Contracts**	**DGM Contracts**	**AVP Operations**	**Approved by Director**
Accepted By Contractor- M/s. Nihva Technologies Pvt. Ltd.				

INDEMNITY BOND

(To be executed on Non – Judicial Stamp Paper on Rs. 500)

THIS INDEMNITY BOND made and executed at Pune this XXth **XXXXXX 202X**

BETWEEN

Bramhacorp Limited having its office at **C/O Residency Club, 3 Queens Garden Road, Pune-411001** herein after called as the OWNER, (which expression shall, unless repugnant to the context mean and include its present and future directors and their successors in title) of the One part

AND

xxxxxxxxxxxxxxxxxx having its office at **xxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxx** herein after called as the CONTRACTOR (which expression shall, unless repugnant to the context mean and include its successors, executors, administrators and assigns) of the other part

Annexure "D" - INDEMNITY BOND

WHEREAS the Owner is a private limited company, engaged in the business of real estate development and has acquired brand equity and expertise in construction, design, development and marketing in real estate;

AND WHEREAS the Owner herein intended to develop a scheme of construction at xxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxx and to facilitate the said construction has entered into contracts with various contractors for the specific tasks in which the Contractor claims to have expertise;

AND WHEREAS the Contractor has represented to the Owner that the Contractor has the experience and capability to successfully & safely execute the work as per the contract;

AND WHEREAS the Contractor has entered into Contract No. **xx** dated **xx/xx/202x** and subsequent amendments with the Owner for **xxx Works** at xxxxxxxxxxxxxxxxxxx which is subject to the various terms and conditions, as set out in the said contract document and its various exhibits, which document has to be read in conformity with the present Indemnity Bond;

AND WHEREAS it is specifically agreed and understood by and between the parties herein that the Contractor shall be wholly and solely liable and responsible for any damage, incidents, accidents, etc. that may occur during the subsistence of the said shuttering & reinforcement labour work contract by and between the parties herein and all the consequences arising thereafter and the Owner shall not be liable and/or responsible for any contravention of the terms of the said contract;

AND WHEREAS the Contractor confirms that the costs agreed to be paid by the Owner adequately cover any and all costs necessary to provide the present Indemnity other than Extra rate for additional safety works as mutually agreed

AND WHEREAS pursuant to the aforementioned, in addition to & pursuant to the terms and conditions as agreed in Contract No. **xx** dated **xx/xx/20xx,** Contract No. **xxx** dated **xx/xx/20xx** and subsequent amendments**,** the Contractor is furnishing the following indemnity, assurances and undertakings with the following terms as set out hereunder:

1. The Contractor undertakes and assures the Owner herein that during the continuance of the said contract, the Contractor and or his sub Contractor shall at all times abide by all the existing laws, including but not limited to the following enactments :

Annexure "D" - <u>INDEMNITY BOND</u>

i) Contract Labour (Regulation and Abolition) Act, 1971
ii) The Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996
iii) Employees' Provident Fund and Miscellaneous Provisions Act, 1952
iv) Employees' State Insurance Act, 1948
v) Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
vi) Maharashtra Labour Welfare Fund Act, 1953
vii) Employees' Compensation Act, 1923
viii) Child Labour (Regulation and Abolition) Act, 1986
ix) Maharashtra Private Security Guards (Regulations of Employment and Welfare) Act, 1981
x) Minimum Wages Act, 1948
xi) Payment of Gratuity Act, 1972
xii) Payment of Wages Act, 1936
xiii) Maternity Benefit Act, 1961

In addition to the above enactments, all the rules made there under, regulations, notifications and bye-laws of State or Central or Local authority shall be abided by and followed by the Contractor. The Contractor shall regularly update himself on amendments to such enactments affecting those employed on the works or the materials used in the works or in any way affecting the conduct of the works and of all orders and declarations of bodies or tribunals having any jurisdiction or authority over the work. The Contractor shall at all times keep the Owner fully indemnified against all or any action taken against the Owner by the competent authority on account of contravention of any of the provision of any Act or rules made there under, regulation or notification including amendments.

2. The Contractor undertakes that it shall be the sole responsibility of the Contractor to make the requisite payments to its employees, sub contractors, workers, labourers, etc. If any person, individual, organization, etc. raises any claim against the Owner or files any litigation against the Owner, for any amounts due or if the Owner is called upon to pay or reimburse any amounts, the Contractor shall indemnify the Owner against all such claims, demands, etc. that may arise out of such non payments or defaults of the Contractors.

3. The Contractor hereby indemnifies the Owner against all matters in connection with the distribution, use and consumption of power. Where, the distribution laid by owner or third party, Contractor to take over the security and safety of such distribution and its safe use. It is expressly agreed and understood that should any accident occur at site by way of damage and / or electrocution or injury in connection with such distribution, use and consumption of power, the Contractor shall be fully responsible for all the consequences and responsibility of the same shall be that of the Contractor and the Contractor shall bear and pay for all costs and expenses that arise due

to the same and as a consequence of such accidents, terrains, trenches, materials including nails etc. are on site.

4. The Contractor being well experienced & fully competent shall supervise and direct the Work efficiently and with his best skills and attention including employing competent supervisors, engineers, workers for supervision that ensures quality of building, material and people and indemnify the Owner for any direct or consequential damage arising from any lapse in supervision or judgment of the Contractor. It is expressly agreed and understood that the Contractor shall not assign or outsource the work agreed to be done by it under the contract to any other person and if it does so then all the damages, losses, etc. arising out of the acts of such third person shall continue to remain the responsibility of the Contractor and the Contractor shall indemnify the Owner against the same.

5. All intellectual property in relation to the Project shall solely vest with the Owner at all times. The Contractor shall indemnify and hold harmless the Owner, his successors or permitted assigns from and against all claims, suits, proceedings, damages, losses, expenses, fees, any royalties, which may arise in the event of any infringement of the Intellectual Property of the Owner and or the intellectual property rights of any other third party with respect to execution of the Work under the Contract Documents by the Contractor. In case an injunction is obtained by any third party, so as to harm the interest/s of the Owner, due to infringement of the intellectual property rights by the Contractor, it shall take appropriate steps to mitigate such harm and continue the Work affected by any injunction or directive.

6. The Contractor shall verify shuttering design/scaffolding design/all supporting system from an authorized structural consultant and shall execute the works accordingly. The Contractor shall indemnify and hold harmless the Owner from all claims arising out of failure of shuttering/ scaffolding due to any reason ie design, execution, workmanship and or material used,potential situation arising during execution.

7. It is expressly agreed and understood by and between the parties herein that the employees of the Contractor and in the event the contractor has assigned his work to a sub-contractor, then such sub-contractor, shall at all times remain the employees of the Contractor and such sub-contractor, as the case may be and shall not at any point of time be treated as the employees of the Owner herein.

8. The Contractor undertakes that it shall be solely liable and responsible for any injuries, loss of life, etc. occurring at site due to the acts and/or negligence of his own employees and/or workmen or a lapse on the part of the Contractor to ensure their safety by adopting various security measures. In the event any claim/s are brought against the Owner for such payment of

compensation and the Owner is required to pay the same, the Owner shall recover the said amounts from the Contractor along with interest at the prevailing market rates.

9. The Contractor further undertakes that it shall be responsible for and shall be responsible to pay the expenses of providing medical aid and bear the hospitalization expenses of any workmen who suffers any bodily injury or fatal injury as a result of an accident that occurs at site and shall keep the Owner fully indemnified against any liability that may arise as a result of such accident. If any expenses are incurred by the Owner, in this regard, the same shall be recoverable from the Contractor forthwith and or be deducted from his bills. This is without prejudice to any remedy that the Owner may have against the Contractor for loss of reputation, litigation brought against the Owner, etc. Thus, it is expressly agreed and understood by and between the parties that at all times the Contractor is to ensure the safety of all workmen working at the site and such responsibility remains with the Contractor until the entire contract between the Contractor and Owner is concluded.

Based on the specific request by the Contractor and in order to assist the Contractor, the Owner has agreed from time to time to inspect the site & generally point out any safety lapses. The same may be done by hard copy or by soft format. The Owner is indemnified from any liability, claim, and responsibility arising out of the Owner extending such help & assistance to the Contractor

10. The Contractor shall supervise and direct the Work efficiently and with his best skills and attention and indemnify the Owner for any direct or consequential damage arising from any lapse in supervision.

11. The Contractor shall be liable for and shall indemnify, keep indemnified and hold harmless the Owner against any expense, liability, loss, claim or legal proceedings in respect of any injury or damage whatsoever to any property movable or immovable in so far as such injury or damage arises out of or in the course of or by reason of carrying out of the Work, and provided always that the same is due to any negligence, omission or default of the Contractor, his employees or of any Nominated Subcontractor, his employees or Subcontractor, his employees etc.

12. The Contractor undertakes that while stationed at site of the Owner, the Contractor shall ensure all the requisite safety procedures as per norms and shall ensure that their health and hygiene is adhered to. The following is the list of precautions to be taken by the Contractor. It is expressly understood that the following list is inclusive and not exhaustive.

a. The Contractor shall provide protective footwear to all the workers. In situations like mixing and placing of mortar of concrete in quarries and places where the work is done under wet conditions as also for movements over surface infected with oyster growth etc., the workmen shall have footwear to protect their feet.

b. The Contractor shall provide protective headwear to the workers, while they are at site to ensure they are protected against incidents such as accidental fall or fall of material from above, etc

c. The Contractor shall provide hand rails at the edges of the floating platform or barges, not allowing nails or metal parts or useless timber to spread around etc. The rubbish and debris shall be cleared from time to time to avoid untoward incidents causing danger to the life and limb of the workmen at site.

d. The Contractor shall ensure that all workmen have proper belts, ropes, etc. while working on any masters, cranes, grabs, hoist etc.

e. The Contractor shall train the workmen so employed in the use of the machinery and ensure that they are fully trained to use the machinery before actually handling the same independently. While training the workmen the Contractor shall also train them on the safety measures to be taken by them while handling the machinery.

f. The wires used during the work by the Contractor are to be laid in such a way that there are no live wires hanging or open so as to avoid electrocution to any workers, persons, visitors, staff etc. or leading to a fire hazard.

g. The Contractor shall ensure the safety of the women workers at site.

h. The Contractor shall ensure there are sufficient access roads for ingress and egress of workers to the site and other areas.

i. The Contractor shall ensure that there are no unauthorized persons other than his own workers at site.

13. The Contractor shall indemnify and hold harmless the Owner from all claims, damages to third party, any future consequential damages which may arise from failure/ accidents/ mishaps or potential risk including but not limited to the following:

- Support systems to permanent and/or temporary work
- Tower crane
- Any construction equipment
- Batching Plants
- Stone Crushing plants
- Hot works
- Fire extinguishers, fire evacuation
- Disaster management provision to cater to inclement weather situation.
- Any test to ascertain the structural stability
- Spread of diseases due to inadequate health and safety measures.
- Debris management
- Incorrect drainage

Annexure "D" - <u>INDEMNITY BOND</u>

- Personal protective equipment
- Safety barriers
- Temporary works
- Site Security breaches
- Claims arising out of termination of insurances policies.
- Lack of Maintenance/calibration of plant and machinery
- Potential damages to third party during contract period or in future due to faulty/incorrect installation /construction methodology, material quality, incorrect propositions etc.
- Damage or potential damage to any operation civic services of underground / Overhead like Water pipelines, Drainage system, Power distribution systems and all services by which people at large may get suffer.
- Shuttering & Scaffolding failures.

14. The Contractor hereby indemnifies and always holds harmless the Owner and its personnel, respective agents, office bearers, etc. against and from all claims, damages, losses and expenses (including civil/criminal legal actions) with cost & consequence thereof, in respect of the following:

(a) Bodily injury, sickness, disease or death, of any workmen or any person visiting the workmen while at site, without the permission of the Owner, whatsoever arising out of or in the course of or by reason of the Contractor's design (if any), acts, the execution and completion of the Works and the remedying of any defects, etc.

(b) Damage to or loss of any property, real or personal (other than the Works), to the extent that such damage or loss:

(i) Arises out of or in the course of or by reason of the Contractor's design (if any), the execution and completion of the Works and the remedying of any defects, and

ii) Is attributable to any negligence, willful act or breach of the Contract by the Contractor, the Contractor's Personnel, their respective agents; or anyone directly or indirectly employed by any of them.

(c) Intellectual property rights and violation of any law viz. labour laws etc.

15. The Contractor hereby indemnifies the Owner against all/any actions, suits, claims, demands, etc. brought against the Owner in respect of anything done or committed to be done by the Contractor on execution or in connection with the work of this contract and against any loss or damages to the Owner for anything done or committed to be done in the execution of this contract.

16. Where the Contractor is responsible for the design of part of the Permanent work, any fault in such design, or the neglect or failure on the part of contractor to comply with any obligation, expressed or implied, Contractor hereby indemnifies the Owner against any or all consequences arises on part of design.

Annexure "D" - INDEMNITY BOND

17. Where the contractor is responsible for selection of Material in the scope of work, Contractor indemnifies the owner from the damages, loss or an any/all consequence arises on part of material selection and its compatibility with the intended purpose of work.

IN WITNESS WHEREOF the above-named parties have signed this indemnity bond at Pune this **XX**th December **202X.**

For **XXXXXXXXXXXXXXXXXXXXXXXXX**

CONTRACTOR

_____

Witness:

1. Sign
   Name
   Address

For **BRAMHACORP LTD.**

OWNER / Project Head

_____

2. Sign
   Name
   Address